

Benton County Commission
September 8, 2026

Convene

Presiding Commissioner Steve Daleske called the meeting of the Benton County Commission to order at 9:00 a.m. on Tuesday, September 8, 2026, in the County Commission Room. Attendance: Larry Berry, Present; Scott Harms, Present; and Steve Daleske, Present.

Approval of Prior Minutes

District 2 Commissioner Scott Harms made the motion to approve prior minutes dated August 31, 2026. District 1 Commissioner Larry Berry seconded the motion. The motion passed by vote: Larry Berry (Yes), Scott Harms (Yes), and Steve Daleske (Yes).

David Malecki

David Malecki is present at today's meeting.

Rosa Valentine/Cynthia Smith/Visitors

Rosa Valentine, Cynthia Smith, and several citizens met with Commissioners to express complaints on several points; they indicated that Commission minutes should be more detailed, and bills and invoice information should be presented to the public for their perusal, so they are aware of how County money is spent, further stating that all budget information and weekly expenses should be posted to the County's website. The group wants planning and zoning enacted NOW; Presiding Commissioner Daleske indicated that this had to be enacted by a vote of the people - this decision is not something that Commissioners can act on alone. Information pertaining to a 2017 court case was presented, and the presenting citizen stated that Travis Elliott, as our legal representative, should not be our legal counsel as he is in direct conflict of interest with someone at his law firm based on this 2017 case. Upon investigation, the incident cited was with another attorney at the law firm of Ellis, Ellis, Hammons, and Johnson, LLC, and had no direct affiliation with Mr. Elliott whatsoever, so no conflict exists.

A complaint was expressed that it was not included in last week's minutes that Mrs. Smith had called for the resignation of Presiding Commissioner Steve Daleske and for a recall election of Associate Commissioners Larry Berry and Scott Harms.

Citizens in attendance with Mrs. Valentine and Mrs. Smith included Jeff Sims, Diana Tumm, Kathy Milam, Jamie Warne, Bernie Drisel, Kat Tye, Valetta Autry, Harry Timm, Sharon Guess, Steven Warne, and Floyd Poe, plus others that did not sign the attendance sheet.

Soft Match Contract

Commissioners discussed the purchase of soft match from Pettis County, and a contract was presented that states the County's intention. District 1 Commissioner Larry Berry made the motion to sign this contract and move forward with the purchase of soft match for the price of \$132,000 from Pettis County, for \$220,000 of Pettis County's soft match credits. District 2 Commissioner Scott Harms seconded the motion. The motion passed by vote: Larry Berry (Yes), Scott Harms (Yes), and Steve Daleske (Yes).

County Clerk

The County Clerk presented monthly budget reports; bills were submitted for approval and payment.

Commissioner Absent/Appointment of Acting Presiding Commissioner

Presiding Commissioner Steve Daleske exited the meeting at 9:34 a.m., to attend another meeting in Pettis County. District 1 Commissioner Larry Berry was appointed as Acting Presiding Commissioner for the remainder of today's meeting.

Other Discussion

The question was raised again about landfills; District 2 Commissioner Scott Harms stated again that the Commission has no knowledge of a landfill. Commissioner Harms was also questioned about a data center being located around Cole Camp, he stated that he has no knowledge of any data center locating in that area.

Visitors

Visitors exited the meeting at 11 a.m.

Adjourn

District 2 Commissioner Scott Harms ordered that the Commission adjourn until September 14, 2026; District 1 Commissioner Larry Berry seconded the motion. The motion passed by vote: Larry Berry (Yes) and Scott Harms (Yes). Meeting adjourned at 12:11 p.m.

SignatureA handwritten signature in blue ink, appearing to read 'LB', with a long horizontal flourish extending to the right.

Larry Berry
Acting Presiding Commissioner